

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

February 19, 2018

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:00 p.m. in City Council Chambers for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Bryan Cook, Richard Johnson (arriving at 6:04 p.m.), Mike Luna, Dr. Mark Rinne, Scott Roybal and Dicky Shanor. Absent: Rocky Case, Pete Laybourn and Jeff White. Also present: Carol Intlekofer, City Clerk; Sylvia Hackl, City Attorney; Ron Downey, City Treasurer, and Chief Greg Hoggatt, Fire and Rescue Department. The pledge of allegiance was recited.

Mayor Orr advised the meeting would be audio recorded, and stated that Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows the governing body to meet in executive session to consider or tender offers regarding salaries, wages or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr advised when the governing body met in executive session, they would be meeting in the Mayor's Conference Room, and when the Fire Union requests to meet in caucus, they may utilize Room 104.

Mayor Orr stated spokespersons for the City during the negotiation process are herself, City Council President Dr. Mark Rinne and Council Vice-President Rocky Case, and spokespersons for the Union were Jonathon Bertsch, Union President, and Bill Hinz, Union Vice-President. Mayor Orr noted that any collective Labor Agreement that may be reached between the City and the Union must be approved by the governing body with the agreement placed on a regular City Council meeting agenda and approved through the Council's usual procedures.

Mayor Orr stated the governing body has had the opportunity to individually review the proposed agreement that was submitted at the February 16th special meeting, and suggested the governing meet in executive session to discuss. She noted that upon return from executive session, review of the agreement would begin on a section-by-section basis. Mr. Bertsch inquired whether there were any amendments or changes by the City since the February 16th meeting. Mayor Orr responded that there was some clean-up language they had noticed that would be proposed. Dr. Rinne moved to meet in executive session, seconded by Mr. Cook. Motion carried. Voting "yes" – all members of the governing body present. For the record, Mayor Orr identified, in addition to members of the governing body present, the City Clerk, City Attorney, City Treasurer and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 6:09 p.m. in the Mayor's Conference Room]

Following closure of the executive session and Union representatives returning to Council Chambers from caucus, Mayor Orr reconvened the special meeting at 7:26 p.m. Representatives then reviewed the proposed agreement section-by-section, noting mutual agreement on numerous sections. Review included: Substantive changes that will differ from current contract provisions, and clerical changes and clarifications. Sections requested to be "pulled" for further discussion included Section 8, Grievance Procedures; Section 21, Classification of Employment and Basic Wages; Section 31, Health, Dental and Life Insurance; Section 45, Shift Trainers, and Section 47, Labor/Management Relations. Mr. Bertsch submitted copies of proposed Union changes to

Sections 8, 21 and 45. It was mutually agreed that existing contract Sections 41, Testing of Aerial Devices, and 46, Wildland, would be removed from inclusion in the new agreement. For the record, Mr. Bertsch stated the Union is comfortable with everything that has been agreed upon, and presented and discussed proposed Union changes to Sections 8, 21 and 45. Mayor Orr discussed proposed City changes to Sections 8, 31 and 47, and advised the City will further review the Union's proposed changes as well as those sections that were "pulled" during the section-by-section review. Dr. Rinne moved to meet in executive session, seconded by Mr. Cook. Motion carried. Voting "yes" – all members of the governing body present. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 8:16 p.m. in the Mayor's Conference Room]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 9:22 p.m. Mutual agreement was reached on revisions to Sections 8 and 21. Pursuant to proposed City changes to Section 31, Mr. Bertsch requested time for the Union to caucus with Mayor Orr recessing the meeting at 9:28 p.m. [City Clerk note: Audio recording of the special meeting was stopped] Mayor Orr reconvened the meeting at 9:32 p.m. Mr. Bertsch expressed the Union's agreement to the wording change in Section 31, and mutual agreement was reached on changes to Sections 45 and 47. Both parties confirmed provisions for the 2018-2019 Collective Labor Agreement had been reached and negotiations were complete. Comments were made and appreciation expressed by City and Union representatives concerning this year's positive negotiating process; benefit of the new labor/management meetings that have been held pursuant to the current contract, and continuing positive communications.

Mayor Orr stated the purpose of the special meeting had been met, and there being no business previously noted for the special meeting, adjourned the meeting at 9:44 p.m.

/s/ Carol Intlekofer, MMC, City Clerk

This notice is available in alternative, accessible formats upon request.

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